

23AVCV00180 23AVCV00180

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C07%2F07%2F2026

Source SHA-256: 6be3b54af9a713183ed684d119bf85e94c0dc95a6bac44d87b8a955c1802b9ab

Case Number: 23AVCV00180 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MIGUEL ROSAS CASTRO, an individual, and ASHLEY ROSAS, an individual,

Plaintiffs,

v.

AMERICAN HONDA MOTOR CO., INC., a California Corporation, and DOES 1 through 10, inclusive,

Defendants.

Case Number 23AVCV00180

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a 'Lemon Law' case arising from the alleged breach of the Song-Beverly Act.

On February 15, 2023, Plaintiffs Miguel Rosas Castro and Ashley Rosas (together Plaintiffs) filed their complaint against Defendant American Honda Motor Co., Inc. (Defendant), asserting causes of action for violation of the Song-Beverly Act, specifically for (1) breach of express warranty, (2) breach of implied warranty, and (3) violation of section 1793.2(b).

Plaintiffs allege that on February 25, 2022, they purchased a 2022 Honda Civic (Vehicle) for which Defendant issued a written warranty. (Compl., ¶ 8.) Plaintiffs claim the Vehicle was delivered with serious defects and nonconformities to warranty and later developed other serious defects and nonconformities to warranty within the applicable express warranty period. (Compl., ¶¶ 10, 22.) Plaintiffs allege the nonconformities substantially impair the use, value, and/or safety of the Vehicle, that Defendant was unable to conform the Vehicle to the applicable express warranty after a reasonable number of repair attempts, and Defendant has failed to promptly replace the Vehicle or make restitution. (Compl., ¶ 22-25.)

On March 20, 2023, Defendant filed its answer, generally denying the allegations contained in the complaint and asserting twelve affirmative defenses.

On December 10, 2025, Plaintiffs filed a notice of conditional settlement of the entire case.

On January 21, 2026, Plaintiffs filed and served on Defendant their memorandum of costs.

On February 9, 2026, Defendant filed its motion to tax costs, originally set for hearing on June 9, 2026.

On March 30, 2026, the Court reset the hearing from June 9, 2026 to June 2, 2026.

On May 26, 2026, Plaintiffs filed their opposition, and Defendant filed a notice of non-opposition.

On June 1, 2026, the Court, on its own motion, continued the hearing on Defendant's motion to tax costs to July 7, 2026 to afford Defendant an opportunity to address Plaintiffs' late-filed opposition.

On June 29, 2026, Defendant filed its reply.

II. Preliminary Procedural Issues

Timeliness of Plaintiffs' Opposition – All papers opposing a motion must be filed and served at least nine court days before the hearing on the motion. (Code Civ. Proc., § 1005, subd. (b).) The hearing on Defendant's motion to tax costs was continued to June 2, 2026. Accordingly, Plaintiffs' opposition was due on or before May 19, 2026. Accordingly, Plaintiffs' opposition, filed on May 26, 2026, was untimely.

However, the Court continued the hearing to July 7, 2026 to afford Defendant an opportunity to appropriately address and respond to Plaintiffs' opposition. Accordingly, because there is no prejudice to Defendant, who was afforded sufficient time to review and respond to the opposition, the Court will consider the opposition on the merits.

III. Legal Standard

Standard for Motion to Tax Costs – Pursuant to California Civil Code section 1794, subdivision (d), a prevailing buyer in a Song-Beverly action is entitled to recover a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended as determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of the action. A prevailing party includes the party with a net monetary recovery. (Code Civ. Proc., § 1032, subd. (a)(4).)

California Code of Civil Procedure section 1033.5 sets forth the specific categories of costs that a prevailing party may or may not be entitled to recover as a matter of right in civil litigation.

California Code of Civil Procedure § 1033.5 provides in relevant part as follows:

“(a) The following items are allowable as costs under Section 1032:

(1) Filing, motion, and jury fees.

...

(3)(A) Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed.

...

(7) Ordinary witness fees pursuant to Section 68093 of Government Code.

...

(14) Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.

...

(b) The following items are not allowable as costs, except when expressly authorized by law:

(1) Fees of experts not ordered by the court.

(2) Investigation expenses in preparing the case for trial.

(3) Postage, telephone, and photocopying charges, except for exhibits.

(4) Costs in investigation of jurors or in preparation for voir dire.

(5) Transcripts of court proceedings not ordered by the court.

(c) An award of costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3) Allowable costs shall be reasonable in amount.

(4) Items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion.

..."

Generally, the Court has discretion to allow costs not listed as a recoverable category in subdivision (a) and not barred by subdivision (b). (Code Civ. Proc., § 1033.5, subd. (c)(4).) However, the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) "[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase costs and expenses to cover items not included in the detailed statutory definition of costs set forth in Code of Civil Procedure section 1033.5." (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 42.) Thus, a prevailing buyer in a Song-Beverly action may be entitled to recover costs and expenses otherwise typically barred by California Code of Civil Procedure section 1033.5, subdivision (b), provided that they were reasonably incurred in commencement and prosecution of the action.

The party filing a memorandum of costs is not required to attach any supporting documents. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) "[A] verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 ["trial court erred in requiring additional proof from" the party claiming costs when party opposing costs bore the burden of proving the cost unnecessary or unreasonable]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 ["where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed"].) The burden is on the party opposing the memorandum to either (a) show that the request is facially improper or (b) produce some evidence to show that the request is improper. (Bender, supra, 217 Cal.App.4th at 989.)

"[T]he mere filing of a motion to tax costs may be a 'proper objection' to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face." (Nelson, supra, 72 Cal.App.4th 111, 131.) However, "[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-774.) The court's first determination, therefore, is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show it to be unnecessary or unreasonable. (Nelson, supra, 72 Cal.App.4th 111, 131.) Unreasonable costs include costs that were not reasonably necessary to the conduct of litigation or were not reasonable in amount. (Id at 130.)

If an item of cost does not appear proper on its face, the burden of showing that it is reasonable and necessary shifts to the party claiming the cost. (Nelson, supra, 72 Cal.App.4th 111, 131; Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267; but see Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308 ["Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred."].)

IV. Discussion

Application – Defendant moves to tax and/or strike Plaintiffs costs on the basis that a majority of the costs were incurred after Defendant's 998 Offer of Settlement dated November 5, 2025, which stated fees and costs would not be recoverable after that date. (Notice of Motion, p. 1:26-28.) Defendant further argues the remaining majority of costs not otherwise precluded by the 998 Offer of Settlement should be stricken or taxed because the claimed costs are unrecoverable, unnecessary, or were excessive in amount pursuant to California Code of Civil Procedure section 1033.5. (Id at 1:28-2:3.)

Defendant requests that the Court entirely strike Plaintiffs' costs, or in the alternative, strike individual costs totaling \$4,790.55. (Motion, p. 2:14-16.)

As a preliminary matter, the Court notes there is no dispute that Plaintiffs are the prevailing party.

a. Motion to Strike Costs in Their Entirety

Defendant's request to strike Plaintiffs' costs in their entirety is largely predicated on Defendant's misunderstanding of the burden-shifting mechanism applicable to motions to strike or tax costs. As discussed at length above, where a cost appears to be proper, the burden is on the moving party, here Defendant, to show that the costs are unreasonable or unnecessary. Only once Defendant makes such a showing, or if the costs appear facially improper, does the burden shift to the opposing party, Plaintiffs, to establish reasonableness or necessity.

Defendant argues, for example, that upon its filing of the motion to strike or tax, it has properly lodged an objection, and the burden shifts back to Plaintiffs, who bear the burden of demonstrating all costs sought are allowable, reasonably necessary to litigation, and reasonable in amount. (Motion, p. 3:15-28.) However, Defendant omits that the burden only shifts upon proper objection, which consists of the moving party showing the costs were not reasonable or necessary where they appear proper on their face. "[M]ore than a bare objection is needed to rebut the presumption that fees were reasonable and necessarily incurred." (State of California v. Meyer (1985) 174 Cal.App.3d 1061, 1075.) Here, Defendant makes no such showing.

Instead, Defendant contends that because Plaintiffs' memorandum of costs omits "critical" information necessary for the Court and parties to determine whether certain costs are recoverable or not, and without any detail or documentation for these costs to determine the source, date, or purpose of the charges, the Court should strike the memorandum of costs entirely. (Motion, p. 4:11-15.) The law is clear that Plaintiffs are under no obligation to provide any supporting documentation in support of their memorandum of costs, though they have nonetheless attached documentation as to some of the costs. Plaintiffs' filing of a verified memorandum of costs constitutes prima facie evidence of the propriety of the listed items, and Defendant bears the burden of establishing the entirety of these costs are not reasonable or necessary.

Defendant merely contends that "Plaintiffs' memorandum of costs seeks recovery of expenses far beyond what is permitted by Cal. Civ. Proc. Section 1033.5's list of permissible litigation costs," yet fails to identify how or why the costs listed are unreasonable, unnecessary, or otherwise improper. (Motion, p. 5:1-2.) Plaintiffs' memorandum of costs seeks, in part, filing and motion fees, jury fees, deposition costs, service of process costs, witness fees, fees for electronic filing or service, and other costs for court appearance professionals and courtesy copies, all expressly permitted by California Code of Civil Procedure section 1033.5 subdivision a or Civil Code section 1794.

Defendant further argues in favor of its motion by noting that Plaintiffs' counsel's sole attestation to the veracity of the contents of the memorandum of costs is upon knowledge and belief that the costs are correct and necessarily incurred, and no further supporting documentation, declaration, or affidavit is provided. (Motion, p. 4:21-24.) California Rule of Court rule

3.1700(a)(1) requires that “the memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” The Court is unaware of, and Defendant cites to, no law which requires anything further than what Plaintiffs here have provided. Plaintiffs’ counsel Kevin Y. Jacobson verified the memorandum of costs by signing, under penalty of perjury, a statement which reads: “I am counsel for the party who claims the costs listed above. To the best of my knowledge, the items of costs are correct and were necessarily incurred in this case.” (Memorandum of Costs, p. 1.)

Defendant has failed to establish that the costs as a whole sought by Plaintiffs are unreasonable, unnecessary, or prohibited.

Accordingly, Defendant’s request to strike Plaintiffs’ memorandum of costs in its entirety is DENIED.

Turning to Defendant’s motion to tax or strike individually identified costs sought by Plaintiffs, the Court preliminarily notes that where an objection is made to less than the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and state why the item is objectionable. (Cal. Rules of Court, rule 3.1700(b)(2). Defendant has complied with this requirement as to four distinct individual categories of costs. The Court addresses each in turn.

b. Post-998 Costs

Defendant argues all costs incurred after the date of November 5, 2025, totaling \$16.00 for First Legal filing fees on December 10, 2025, should be stricken because the language of Defendant’s settlement offer made to Plaintiffs pursuant to California Code of Civil Procedure 998 states, in relevant part, “[Defendant] will also pay Plaintiff’s statutory costs and expenses under California Civil Code 1794(d)(2), including reasonable attorneys’ fees in the amount determined by the Court to have been reasonably incurred by Plaintiffs in connection with the commencement and prosecution of this action to, and including, the date of this Offer.” (Motion, p. 5:13-19; Sadanaga Decl., ¶ 2, Ex. A, p. 2:21-25.) Defendant argues that by the terms of the Offer, which was accepted by Plaintiffs, any and all fees or costs incurred after November 5, 2025. (Motion, p. 5:20-22.)

In opposition, Plaintiffs argue that Defendant’s attempt to preclude recovery of costs and fees to which Plaintiffs are otherwise entitled is impermissible by law. (Opp., p. 3:19-20.) Specifically, Plaintiffs argue that pursuant to California Civil Code section 3513, a law established for a public reason cannot be waived or contravened by a private agreement. (Id at 3:20-22.) Additionally, California Civil Code Section 1790.1 contains an express anti-waiver provision under the Song-Beverly Act, which reads: “Any waiver by the buyer of consumer goods of the provisions of this chapter, except as expressly provided by this chapter, shall be deemed contrary to public policy and shall be unenforceable and void.” (Emphasis added.)

The filing fees sought by Plaintiffs are expressly authorized under CCP Section 1033.5 subdivision (a). CCP Section 1033.5 is not a chapter of the Song-Beverly Act.

Here, the 998 offer contains the following language: “AHM will also pay Plaintiff’s statutory costs and expenses under California Civil Code 1794(d)(2), including reasonable attorneys’ fees in the amount determined by the Court to have been reasonably incurred by Plaintiffs in connection with the commencement and prosecution of this action to, and including, the date of this Offer.” (Ex. A., para. 2.) “To, and including,” does not also mean “after.” The Court will enforce the clear terms of the agreement excepted by Plaintiff. Those terms do not include costs included after the date of the Offer.

Accordingly, Defendant’s motion to tax or strike the \$16.00 in filing or service costs on December 10, 2025 is GRANTED.

c. Deposition Costs

Defendant requests the Court strike or tax costs prohibited by California Code of Civil Procedure section 1033.5 subdivision (b), including deposition costs detailed in Attachment 4E to the memorandum of costs, for the deposition transcript of Plaintiffs dated November 12, 2024, totaling \$1,472.75 and the deposition transcript of Defendant's person most knowledgeable dated December 19, 2024 totaling \$2,237.30. (Motion, p. 6:3-14.)

"The taking, videotaping, and transcribing of necessary depositions is expressly allowed by statute. (Code Civ. Proc., § 1033.5, subd. (a)(3).)" (Nelson, supra, 72 Cal.App.4th 111, 131.) California Code of Civil Procedure section 1033.5, subdivision (a)(3)(A) allows as costs the transcribing of necessary depositions, including an original and one copy of those taken by the claimant and one taken by the party against whom costs are allowed.

Thus, this request is facially proper and valid. Defendant makes no argument and provides no facts or evidence establishing that these costs are unreasonable or unnecessary, and therefore, has failed to meet its burden.

Accordingly, Defendant's request to strike deposition costs is DENIED.

d. Witness Fees

Defendant requests the Court strike or tax costs prohibited by California Code of Civil Procedure section 1033.5 subdivision (b), including ordinary and expert witness fees sought by Plaintiff. (Motion, p. 6:15-18.)

i. Ordinary Witness Fees

California Code of Civil Procedure section 1033.5 subdivision (a)(5) permits recovery of ordinary witness fees pursuant to Government Code section 68093. Government Code section 68093 states that "witness' fees for each day's actual attendance, when legally required to attend a civil action or proceeding in the superior courts, are thirty-five dollars (\$35) a day and mileage actually traveled, both ways, twenty cents (\$0.20) a mile."

Here, Plaintiffs request \$35.00 in costs for a Deposition Subpoena billed through One Legal on August 3, 2023. (Memorandum of Costs Attachment 8A(6).) Witness fees are expressly permitted in California Code of Civil Procedure section 1033.5, subdivision (a) only to the extent that they are incurred as part of a witness being legally required to attend a civil action/proceeding at the court.

Plaintiffs do not appear to be seeking costs related to attendance in a civil action or superior court proceeding, particularly in light of the fact that no witnesses were called in the present matter. Therefore Plaintiffs are not entitled to recovery pursuant to Section 1033.5, subdivision (a). However, the expense may still be recoverable as a cost pursuant to the Court's discretion under Section 1033.5, subdivision (c)(4), or as an expense pursuant to Civil Code section 1794, subdivision (d) if Plaintiffs show that the expense was "reasonably incurred by the buyer in connection with the commencement and prosecution of the action." (Civ. Code, § 1794, subd. (d).)

It is unclear from Attachment 8A(6) for what specific purpose this charge was incurred. The Attachment only states that the cost was incurred on August 3, 2023, the charge relates to an ordinary deposition subpoena, that the total invoice from the vendor, One Legal, amounted to \$101.66, and that Plaintiffs seek \$35 in reimbursement of costs. (Memorandum of Costs, Attachment 8A(6).) Plaintiffs provide no guidance or purpose for this charge in their Opposition, and the Court notes that other subpoena costs for which Plaintiffs seek recovery are otherwise billed as costs incurred for service of process. (Id at Attachment 5D.) Absent information as to the necessity, reasonableness, or purpose of the cost as asserted, the Court declines to exercise its discretion in granting this cost. Further, Plaintiffs have made no showing or argument that this cost was reasonably incurred by Plaintiffs in connection with the commencement and prosecution of this action.

Accordingly, Defendant's motion to strike the ordinary witness fee is GRANTED.

ii. Expert Witness Fees

Plaintiffs seek \$1,029.60 for costs incurred related to one expert witness, Darrell Blasjo, a vehicle inspection expert. (Memorandum of Costs Attachment 8B(5).)

In *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138 (overruled in part on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189), the Court held that, consistent with Legislative intent, a prevailing buyer-plaintiff under the Song-Beverly Act may recover expert fees where otherwise prohibited under Section 1033.5 subdivision (b), as they are covered under "costs and expenses" in California Civil Code section 1794, subdivision (d).

Thus, Section 1033.5 subdivision (b) does not bar Plaintiffs' recovery of expert witness fees. However, this alone does not entitle Plaintiffs to recover the amount sought. While Plaintiffs may recover expert fees as an expense pursuant to Civil Code section 1794, subdivision (d), Plaintiffs must first show that the expense was "reasonably incurred by the buyer in connection with the commencement and prosecution of the action." (Civ. Code, § 1794, subd. (d); see *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.)

Here, Plaintiffs have not provided any evidence or facts showing that the expert witness fee was reasonably necessary to the conduct of litigation and reasonable in amount. Absent such a showing, Plaintiffs are not entitled to recover this expert witness fee.

Accordingly, Defendant's request to tax or strike costs as to ordinary and expert witness fees is GRANTED.

V. Conclusion

Defendant American Honda Motor Co., Inc.'s Motion to Tax and/or Strike Plaintiffs' Costs is DENIED in part and GRANTED in part. The Court strikes \$1,080.60 for the ordinary witness fee dated August 3, 2023, the expert witness fee for the vehicle inspection of Darrell Blasjo dated October 22, 2024, and the \$16.00 in costs incurred after acceptance of the 998 offer.